

Raja Ram Gupta v. Chairman, General Manager, U.P. Power Corporation and Others

High Court of Judicature at Allahabad · Division Bench · 19 October 2023 · 2023:AHC:203075-DB · WRIT - C No. 36332 of 2023 · **Petition disposed; Executive Engineer to decide the clause 4.4 application within three months.**

HEADNOTE

Writ seeking a new electricity connection at Varanasi disposed of by directing the Executive Engineer to decide the petitioner's application, recorded as filed under clause 4.4 of the Uttar Pradesh Electricity Supply Code, 2005, within three months of production of a certified copy. The connection itself was not ordered.

FACTUAL SUMMARY

Raja Ram Gupta wanted a new electricity connection for house No. D-54/29, A.N. Jaddu Mandi, Varanasi. He petitioned the Allahabad High Court against the U.P. Power Corporation and its officers, seeking the connection at once and a decision on application No. 1013637304. He relied on an application said to have been filed under clause 4.4 of the Uttar Pradesh Electricity Supply Code, 2005. The application lay with the Executive Engineer, Urban Electricity Distribution Division, Purvanchal Vidyut Vitran Nigam Limited, Varanasi.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

New connection application under clause 4.4

HOLDING

Where a new-connection writ rests on an application ostensibly filed under clause 4.4 of the Uttar Pradesh Electricity Supply Code, 2005, the High Court may dispose of the petition by directing the Executive Engineer to decide that application within three months of filing a certified copy of the order, without itself directing that the connection be released. ¶ 2-3

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents The Division Bench did not release the connection. It recorded an application ostensibly under clause 4.4 and directed the Executive Engineer to decide application No. 1013637304 within three months of production of a certified copy. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A NEW CONNECTION AT HOUSE NO. D-54/29, A.N. JADDU MANDI, VARANASI

Merits of application No. 1013637304, including any clause 4.4 conditions, left to the Executive Engineer. ¶ 3